

CITY OF CHEYENNE
CONTRACT MODIFICATION

Approved as to
form only:

Date: 6/30/21

Contract Modification: #1

Project: Landfill Front Entrance and Scale House Construction Support

Project Number: Contract # 7231

Contractor: Burns and McDonnell.

Date Prepared: June 21, 2021

The above referenced contract is amended or modified as set forth in the following and these amendments and modifications of the plans and specifications are agreed to by the parties. All other aspects of the original agreement remain unchanged and in full force and effect.

I. Description of Changes

The City provided a list of Prefabricated Contractor for Bidding purpose. The manufacture is claiming Force Majeure and can not meet Cities schedule.

II. New Contract Items

Scale Building design from a Prefabricated building to a build on site.

III. Schedule

No change to contract length.

IV. Summary

Original Contract Amount	\$24,900.00
Previous Modifications	\$0
Contract Amount Prior to this Modification.....	\$24,900.00
This Modification	\$38,937.00
New Contract Amount	\$63,837.00

V. Approvals

DATE: _____

City of Cheyenne

Mayor Patrick Collins

/ATTEST: City Clerk Kristina F. Jones

Recommend approval by City Project Manager / Accepted by Consultant



Cheyenne Happy Jack Landfill – Scale Building Re-design

Burns & McDonnell's Scope of Services:

100 Project Management

101 Project Management – Burns & McDonnell shall provide for general administration of the design contract with the City. Specific tasks included within the administration of the construction contract include general correspondence, schedule and budget tracking and project billing.

200 Engineering Design Services

201 Architectural Design –

- a. Update architectural wall sections, elevations and materials to match the administration building.
- b. Coordinate the integration of structural and Mechanical/Electrical/Plumbing packages.
- c. Includes 1 additional Architectural drawing sheet and modification to existing Architectural drawing sheets.

202 Structural Design –

- a. Structural design of CMU walls.
- b. Structural design of steel roof members.
- c. Verify existing foundation design is adequate and make any necessary updates.
- d. Includes 1 additional structural drawing sheet and any required modifications to existing structural sheets.

203 Mechanical/Plumbing Design –

- a. Size HVAC system and equipment and layout system routing.
- b. Verify plumbing fixtures and connections.
- c. Includes additional 1 new mechanical plan sheet and 1 new plumbing sheets and updates to existing sheets as required.

204 Electrical Design –

- a. Develop electrical load for building and verify panel sizing accordingly.
- b. Power distribution for general use and HVAC equipment.
- c. Interior and exterior lighting with basic controls.
- d. Update grounding and lightning protection.
- e. Includes 3 additional electrical sheets.
- f. **Exclusions:** Network design. Only locations of network drops will be indicated.

300 Construction Support:

301 Construction Support – Burns & McDonnell will provide construction support, answering technical questions concerning the design that may arise during construction.

302 Submittal and RFI Review – Burns & McDonnell will review contractor submittals. For purposes of this scope of work it is assumed that a total 60 submittals will need to be reviewed (at the time of this scope development, approximately 60% of those submittals have been reviewed). It is also assumed that a total of approximately 50



requests for information (RFI's) will be received and reviewed (26 have been received to date).

400 Scale House Roof Design Services:

401 Structural Design – Burns & McDonnell will provide updated architectural and structural design to incorporate contractor preferred material for the scale house roof.

Compensation:

- A. For Services performed, CLIENT shall pay CONSULTANT as follows:
 - 1. For expenses incurred by CONSULTANT, such as authorized travel and subsistence, including airfare, food, lodging, automobile rental, commercial services, and incidental expenses, the cost to CONSULTANT plus ten percent (10%).
- B. Taxes: Any sales or use taxes, or their equivalent, imposed by state, local or other authorities shall be in addition to the compensation stated under "Amount of Payment."
- C. Total payment for the Scope of Services described herein including expenses is not to exceed thirty-eight thousand nine hundred thirty-seven Dollars (\$38,937), which amount shall not be exceeded without prior written consent of the City.

We appreciate the opportunity to present this Proposal. If it is acceptable, please sign and return one copy for our file.

Sincerely,

A handwritten signature in blue ink that reads "Joshua Lee".

Josh Lee
Project Manager

Scale House Redesign

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[illegible]

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form only:

amf

Date: 9/14/20

City Contract No. 7231

PROFESSIONAL SERVICES AGREEMENT
for
Landfill Front Entrance and Scale House Construction Support

THIS AGREEMENT is made and entered into this 16th day of September, 2020, by and between the City of Cheyenne, located at 2101 O'Neil Avenue, Cheyenne, Wyoming 82001 ("City"), and Burns and McDonnell, located at 8201 Norman Center Drive, Suite 300, Bloomington, Minnesota 55437 ("Consultant").

RECITALS

In consideration of the mutual covenants and obligations herein expressed, it is agreed by and between the parties as follows:

1. **SCOPE OF WORK**

The Consultant agrees to provide services as described for the above-mentioned project, in accordance with the Scope of Work attached hereto as Exhibit A, incorporated by reference and expressly made a part hereof.

2. **TIME OF PERFORMANCE**

The work included in this Scope of Work will be completed within eighteen (18) months from notice to proceed or when the Construction has been complete.

3. **COMPENSATION**

In consideration of the services to be performed pursuant to this Agreement, the Consultant will bill the City and the City agrees to pay Consultant a not to exceed amount of Twenty Four Thousand and Nine Hundred Dollars (\$24,900.00) as stated in Exhibit A.

4. **CONSULTANT RESPONSIBILITY**

In providing services under this Agreement, the Consultant shall perform in a manner consistent with that degree of care and skill ordinarily exercised by members of the same profession currently practicing under similar circumstances. Upon notice to the Consultant, the Consultant will, without additional compensation, correct those services not meeting such a standard.

5. **COMPLIANCE WITH LAWS**

The Parties agree that they will perform their obligations as provided in this Agreement in accordance with all applicable laws and ordinances.

6. **DRUG-FREE WORKPLACE**

In compliance with the Drug Free Work Place Act of November 1988, the City of Cheyenne has established an Alcohol and Controlled Substance Policy that pertains to alcohol and drug usage by City Employees. All architects, engineers and other consultants under contract with City of Cheyenne, and their employees and sub-consultants, are required to comply with the provisions of the City's Alcohol and Controlled Substance Policy for drug and/or alcohol usage on City property or other sites occupied by the Consultant while performing the duties and responsibilities of the Agreement. It is the responsibility of the Consultant to familiarize themselves with the requirements of this policy and to inform all their employees and sub-consultants of the requirements and ensure their compliance. If the Consultant, their employees or sub-consultants are found in violation of this policy, the Agreement may be terminated.

7. **INDEMNIFICATION/HOLD HARMLESS**

The Consultant agrees to indemnify, hold harmless and defend the City from and against any and all liabilities, claims, penalties, forfeitures and suits, and the cost and expenses incident thereto, including reasonable attorney's fees, which may hereafter arise as a result the performance of the Consultant's duties, including death or bodily injury to any person, destruction or damage to any property, contamination of or adverse effects on the environment, or any violation of governmental laws, regulations or orders to the extent caused by (1) the Consultant's breach of any term or provision of this Agreement; or (2) any negligent or wrongful act, error or omission by the Consultant, or its employees or sub-consultants in the performance of this Agreement. The Consultant acknowledges that it may incur a financial obligation to the City pursuant to the terms of this paragraph.

8. **INSURANCE REQUIREMENTS**

The Consultant must provide proof of the following insurance coverages:

Commercial General Liability Insurance

For claims arising out of bodily injury, illness or death, or from damage to or destruction of property of others, including loss or use thereof, with minimum limits of \$1,000,000 per occurrence, \$2,000,000 aggregate for the entire term of the Agreement.

Workers' Compensation

Workers' compensation coverage shall be in effect for the entire term of the Agreement, as required by Wyoming law, for all employees or agents providing services under this Agreement. Consultant shall provide the City with proof of workers' compensation or employer's liability insurance coverage.

Professional Liability Insurance

The Consultant shall provide proof of professional liability insurance or errors and omissions liability insurance in an amount not less than \$500,000 to protect the City from any and all claims arising from the Consultant's negligence in the performance of duties under this Agreement. The City prefers that this liability insurance coverage be provided pursuant to an "occurrence" policy.

If this coverage is provided pursuant to a "claims made" policy:

- a. Consultant shall, concurrently with the execution of this Agreement, provide the City with a certificate of insurance demonstrating that such coverage is or shall be in effect at the time the Consultant begins the provision of services under this Agreement; and
- b. In the event the Consultant's services extend into a future policy period, the Consultant shall, prior to the policy expiration date, provide the City with a new certificate of insurance demonstrating that such coverage is or shall be in effect during all periods of time that Consultant will provide services under this Agreement; and
- c. Consultant shall maintain said "claims made" coverage for a period of five (5) years following the last date that Consultant has provided services under this Agreement; and
- d. In the event the Consultant or the insurer terminates "claims made" coverage prior to the expiration of the periods provided in subparagraphs a., b., or c. of this paragraph, the Consultant shall provide to the City advance written notification of the termination of said coverage and shall provide the City with an endorsement for an extended reporting period ("tail coverage") which shall be in effect for a period of time not less than five (5) years following the last date that Consultant has provided services under this Agreement.

Additional Insurance Information

The Consultant shall name the City of Cheyenne as an **Additional Insured** by endorsement on its insurance policies and shall provide the City with a copy of the endorsements. This requirement does not apply to workers' compensation and professional liability insurance policies.

Consultant shall provide the City with certificates of insurance acknowledging the above-stated coverages prior to beginning any work under this Agreement.

It is understood and agreed that these policies are primary and not contributory. All policies required under this Agreement shall be in effect for the duration of the Agreement. It shall be an affirmative obligation upon Consultant to immediately notify in writing the city risk manager, city clerk, and city attorney of any fact, circumstance, or occurrence that has resulted in or may result in the cancellation of, or substantive change to any insurance coverage required by this Agreement, and failure to do so shall be construed to be a breach of this Agreement.

If requested by the City, the Consultant shall provide the City with copies of insurance policies and/or policy endorsements listing the City of Cheyenne as an additional insured. The City's failure to request or review such policies, endorsements, or certificates shall not affect the City's rights or Consultant's obligation hereunder.

Any insurance company providing coverage under this Agreement shall have a minimum A. M. Best rating of A- (excellent).

9. **MINORITY AND DISADVANTAGED BUSINESS ENTERPRISES** 49 C.F.R. Part 26
All parties to this Agreement assure that no person will be excluded from participation in, denied the benefits of, or otherwise discriminated against, in connection with the award and performance of this Agreement on the grounds of age, race, color, disability, national origin or sex.
10. **MONTHLY REPORT**
With every monthly billing, Consultant shall provide the City Representative with a written statement of the status of the work with respect to the Scope of Work, time sheets, and work schedule. Failure to provide the required monthly report will delay processing of any payment request until the report is submitted.
11. **INDEPENDENT CONSULTANT**
The Consultant shall function as an independent consultant for the purposes of this Agreement. The Consultant shall assume sole responsibility for any debts or liabilities that may be incurred by the Consultant in fulfilling the terms of this Agreement. Nothing in this Agreement shall be interpreted as authorizing the Consultant or its agents or employees to act as an agent or representative of or on behalf of the City or to incur any obligation of any kind on the behalf of the City.
12. **TAXES**
The Consultant agrees to pay all valid taxes, excises, license fees, permit fees, bills, debts and obligations incurred by and in connection with its operations under this Agreement.
13. **DEFAULT**
Each and every term and condition in this Agreement shall be deemed to be a material element of the Agreement. In the event either party should fail or refuse to perform according to the terms of this Agreement, such party may be declared in default.
14. **REMEDIES**
In the event a party has been declared in default, such defaulting party shall be allowed a period of fifteen (15) days within which to cure the default. In the event the default remains uncorrected, the non-defaulting party declaring default may elect to:
 - a. Terminate the Agreement and seek damages, which damages shall not exceed the contract amount; or
 - b. Treat the Agreement as continuing and require specific performance.
15. **TERM AND TERMINATION**
This Agreement shall be for a period of eighteen (18) months from date of execution. The parties may by mutual written agreement renew or extend this Agreement.

The City may, without cause, and upon thirty days' written notice to the Consultant, terminate this Agreement in whole or in part at any time, for the City's convenience. Upon receipt of such notice, the Consultant shall:

- a. Discontinue all services affected; and
- b. Deliver to the City within five (5) days all data, drawings, specifications, reports, estimates, summaries, and such other information and materials as may have been accumulated by the Consultant in performing this Agreement, whether completed or in process.
- c. In the event of termination for convenience, the City will pay the Consultant for accepted work done and expenses incurred to the date of termination. Such acceptance shall not be unreasonably withheld.

16. **ADDITIONAL REMEDIES**

In the event the Consultant fails to strictly perform in accordance with this Agreement, the City may elect to correct the deficiencies and charge the Consultant. In the event of default of any of the conditions by either party which shall require the party not in default to commence legal or equitable action against the defaulting party each party shall bear its own costs and expenses, including without limitation, attorney's fees.

17. **GOVERNING LAW, JURISDICTION AND VENUE**

The construction, interpretation and enforcement of this Agreement shall be governed by the laws of the State of Wyoming. The courts of the State of Wyoming shall have jurisdiction over any action arising out of this Agreement and over the parties, and the venue shall be the First Judicial District, Laramie County, Wyoming.

18. **GOVERNMENTAL IMMUNITY**

The City of Cheyenne, along with its officials and employees, does not waive its governmental immunity by entering into this Agreement, except to the extent necessary for the parties to pursue a contract action to clarify or enforce the written terms of the Agreement. Furthermore, the City specifically retains all immunities and defenses available to it as a sovereign or governmental entity pursuant to Wyo. Stat. § 1-39-101, *et seq.*, and all other relevant state and federal law. Designations of venue, choice of law, enforcement actions, and similar provisions should not be constructed as a waiver of governmental immunity. The parties agree that any ambiguity in this Agreement shall not be strictly construed, either against or for either party, except that any ambiguity as to governmental or sovereign immunity shall be construed in favor of governmental immunity.

19. **MONITORING ACTIVITIES**

The City shall have the right to monitor all activities related to this Agreement that are performed by the Consultant or its sub-consultants. This shall include, but not be limited to, the right to make site inspections at any time and with reasonable notice; to bring experts and consultants on site to examine or evaluate completed work or work in progress; to examine the books, ledgers, documents, papers, and records pertinent to this Agreement; and to observe personnel in every phase of performance of the related work.

20. **OWNERSHIP OF DOCUMENTS AND WORK PRODUCT**

All deliverables by the Consultant, all work product of the Consultant, all notes, calculations, memoranda, or any other documentation generated by the Consultant pursuant to the scope of this Agreement, shall be the property of the City of Cheyenne and shall be provided to the City of Cheyenne immediately upon request.

21. **NON-DISCRIMINATION**

The Consultant shall comply with the Civil Rights Act of 1964, the Wyoming Fair Employment Practices Act (Wyo. Stat. § 27-9-105, *et seq.*), the Americans With Disabilities Act (ADA), as amended, 42 U.S.C. § 12101, *et seq.*, and the Age Discrimination Act of 1975 and any properly promulgated rules and regulations thereto, and shall not discriminate against any individual on the grounds of age, sex, creed, color, race, religion, national origin, ancestry, pregnancy or qualifying disability in connection with the performance under this Agreement.

22. **FORCE MAJEURE.**

The performance of the Agreement by either party shall be subject to force majeure including, but not limited to, acts of God, fire, flood, natural disaster, war or threat of war, acts or threats of terrorism, civil disorder, unauthorized strikes, governmental regulation or advisory, recognized health threats as determined by the World Health Organization, the Centers for Disease Control, or local government authority or health agencies (including, but not limited to, the health threats of COVID-19, H1N1, or similar infectious diseases), curtailment of transportation facilities, or other similar occurrence beyond the control of the parties, where any of those factors, circumstances, situations, or conditions or similar ones prevent, dissuade, or unreasonably delay the performance required by this Agreement. The Agreement may be cancelled by either party, without liability, damages, fees, or penalty, and any unused deposits or amounts paid shall be refunded, for any one or more of the above reasons, by written notice to the other party.

23. **PROFESSIONAL REGISTRATION**

The Consultant shall endorse, as required by law, plans and reports prepared under this Agreement, and shall affix thereto his or her seal of professional registration, showing that he or she is licensed to practice in the State of Wyoming, if necessary.

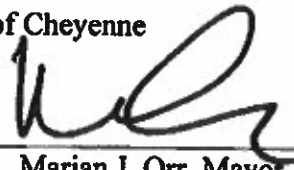
24. **ENTIRETY OF AGREEMENT**

This Agreement consisting of seven (7) pages, and Exhibit A consisting of four (4) pages, contain the entire understanding of the parties. There are no other terms or conditions, written or oral, concerning or controlling this matter.

IN WITNESS WHEREOF, the parties have hereunto set their hands and seals the day and year first above written.

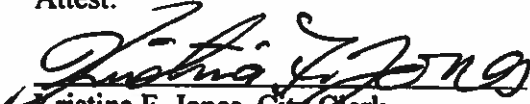
City of Cheyenne

(SEAL)

By: 

Marian J. Orr, Mayor

Attest:


Kristina F. Jones, City Clerk

Date: 09172020

Consultant

By: See Attached

Print Name: _____

Date: _____

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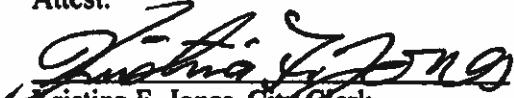
City of Cheyenne

By: _____

Marian J. Orr, Mayor

(SEAL)

Attest:


Kristina F. Jones, City Clerk

Date: _____

09/17/2020

Consultant

By: _____

Print Name: Spencer A. Cronin, Regional Manager,
Environmental

Date: September 25, 2020



EXHIBIT A

[Scope of Work]

Landfill Front Entrance and Scale House Construction Support

Abstract

Help answering construction questions and update documents.

Matt Theriault

mtheriault@cheyenne.wy.gov

(307) 637-6279

Number of Pages

4



June 1, 2020

Mr. Matt Theriault
Staff Engineer
City of Cheyenne
2101 O'Neil Avenue
Cheyenne, WY 82001

Re: Landfill Front Entrance and Scale House Construction Support

Dear Mr. Theriault:

Attached is our proposed scope of service to provide engineering consulting services as directed by the City related to the new scale house, administration building and front entrance construction project. For purposes of this proposal we have assumed a budget of \$24,900 to complete on-call consulting support services as described in the attached scope of services as requested by the City. The services will be completed in accordance with the attached rate sheet.

Please do not hesitate to contact us if you have any questions or need additional detail. Matt Evans can be reached at 952-656-3629 and Andy Hundley at 303-474-2220.

Sincerely,
Burns & McDonnell

A handwritten signature in black ink, appearing to read "Matthew J. Evans".

Matthew J. Evans, PE
Project Manager

A handwritten signature in black ink, appearing to read "Andrew Hundley".

Andrew Hundley, PE
Department Manager

Approved as to
form only:

amf

Date: 9/14/20

City Contract No. 7231

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Landfill Front Entrance and Scale House Construction Support

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OL

RECITALS

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3. COMPENSATION

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The City shall have the right to monitor all activities related to this Agreement that are performed by the Consultant or its sub-consultants. This shall include, but not be limited to, the right to make site inspections at any time and with reasonable notice; to bring experts and consultants on site to examine or evaluate completed work or work in progress; to examine the books, ledgers, documents, papers, and records pertinent to this Agreement; and to observe personnel in every phase of performance of the related work.

20. **OWNERSHIP OF DOCUMENTS AND WORK PRODUCT**

All deliverables by the Consultant, all work product of the Consultant, all notes, calculations, memoranda, or any other documentation generated by the Consultant pursuant to the scope of this Agreement, shall be the property of the City of Cheyenne and shall be provided to the City of Cheyenne immediately upon request.

21. **NON-DISCRIMINATION**

The Consultant shall comply with the Civil Rights Act of 1964, the Wyoming Fair Employment Practices Act (Wyo. Stat. § 27-9-105, *et seq.*), the Americans With Disabilities Act (ADA), as amended, 42 U.S.C. § 12101, *et seq.*, and the Age Discrimination Act of 1975 and any properly promulgated rules and regulations thereto, and shall not discriminate against any individual on the grounds of age, sex, creed, color, race, religion, national origin, ancestry, pregnancy or qualifying disability in connection with the performance under this Agreement.

22. **FORCE MAJEURE.**

The performance of the Agreement by either party shall be subject to force majeure including, but not limited to, acts of God, fire, flood, natural disaster, war or threat of war, acts or threats of terrorism, civil disorder, unauthorized strikes, governmental regulation or advisory, recognized health threats as determined by the World Health Organization, the Centers for Disease Control, or local government authority or health agencies (including, but not limited to, the health threats of COVID-19, H1N1, or similar infectious diseases), curtailment of transportation facilities, or other similar occurrence beyond the control of the parties, where any of those factors, circumstances, situations, or conditions or similar ones prevent, dissuade, or unreasonably delay the performance required by this Agreement. The Agreement may be cancelled by either party, without liability, damages, fees, or penalty, and any unused deposits or amounts paid shall be refunded, for any one or more of the above reasons, by written notice to the other party.

23. **PROFESSIONAL REGISTRATION**

The Consultant shall endorse, as required by law, plans and reports prepared under this Agreement, and shall affix thereto his or her seal of professional registration, showing that he or she is licensed to practice in the State of Wyoming, if necessary.

24. **ENTIRETY OF AGREEMENT**

This Agreement consisting of seven (7) pages, and Exhibit A consisting of four (4) pages, contain the entire understanding of the parties. There are no other terms or conditions, written or oral, concerning or controlling this matter.

IN WITNESS WHEREOF, the parties have hereunto set their hands and seals the day and year first above written.

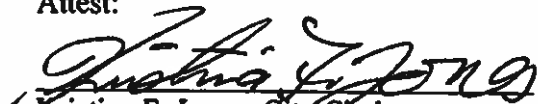
City of Cheyenne

By: _____

Marian J. Orr, Mayor

(SEAL)

Attest:


Kristina F. Jones, City Clerk

Date: _____

0917-2020

Consultant

By: _____

See Attached

Print Name: _____

Date: _____

IN WITNESS WHEREOF, the parties have hereunto set their hands and seals the day and year first above written.

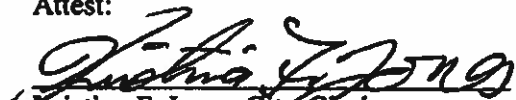
City of Cheyenne

By: _____

Marian J. Orr, Mayor

(SEAL)

Attest:


Kristina F. Jones, City Clerk

Date: _____

09/17/2020

Consultant

By: _____

Print Name: Spencer A. Cronin, Regional Manager,
Environmental

Date: September 25, 2020



EXHIBIT A

[Scope of Work]

Landfill Front Entrance and Scale House Construction Support

Abstract

Help answering construction questions and update documents.

Matt Theriault

mtheriault@chevannacity.org
(307) 637-6279

Number of Pages

4



June 1, 2020

Mr. Matt Theriault
Staff Engineer
City of Cheyenne
2101 O'Neil Avenue
Cheyenne, WY 82001

Re: Landfill Front Entrance and Scale House Construction Support

Dear Mr. Theriault:

Attached is our proposed scope of service to provide engineering consulting services as directed by the City related to the new scale house, administration building and front entrance construction project. For purposes of this proposal we have assumed a budget of \$24,900 to complete on-call consulting support services as described in the attached scope of services as requested by the City. The services will be completed in accordance with the attached rate sheet.

Please do not hesitate to contact us if you have any questions or need additional detail. Matt Evans can be reached at 952-656-3629 and Andy Hundley at 303-474-2220.

Sincerely,
Burns & McDonnell

A handwritten signature in black ink, appearing to read "Matthew J. Evans".

Matthew J. Evans, PE
Project Manager

A handwritten signature in black ink, appearing to read "Andrew Hundley".

Andrew Hundley, PE
Department Manager